

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

23. PATRICIA STILLING V. CHARLES STILLING

26FL0023

Petitioner filed a Request for Order (RFO) on July 1, 2026, seeking temporary spousal support as well as an order for Respondent to maintain life insurance or in the alternative not change the beneficiary of Respondent's pension plans. Petitioner concurrently filed an Income and Expense Declaration. Respondent was mail served on July 21, 2026.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration. The court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court finds temporary guideline spousal support to be \$3,249 payable from Respondent to Petitioner. (See attached X-Spouse) The court orders Respondent to pay Petitioner \$3,249 as and for temporary guideline spousal support effective July 1, 2026, until further order of the court or termination by operation of law.

The court finds this results in an arrears balance of \$9,747 for the months of July through September inclusive. The court orders Respondent to pay Petitioner \$812.25 as and for arrears effective October 15, 2026 and payable on the 15th of each month until paid in full (approximately 12 months). If any payment is missed or late, the entire amount shall become immediately due and payable with legal interest.

As to the request for Respondent obtain life insurance, the request is denied without prejudice. Respondent is ordered not to change the beneficiary of the pension plans without further order of the court.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #23: THE COURT FINDS TEMPORARY GUIDELINE SPOUSAL SUPPORT TO BE \$3,249 PAYABLE FROM RESPONDENT TO PETITIONER. (SEE ATTACHED X-SPOUSE) THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$3,249 AS AND FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT EFFECTIVE JULY 1, 2026, UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THIS RESULTS IN AN ARREARS BALANCE OF \$9,747 FOR THE MONTHS OF JULY THROUGH SEPTEMBER INCLUSIVE. THE COURT ORDERS RESPONDENT TO PAY PETITIONER \$812.25 AS AND FOR ARREARS EFFECTIVE OCTOBER 15, 2026 AND PAYABLE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

(APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

AS TO THE REQUEST FOR RESPONDENT OBTAIN LIFE INSURANCE, THE REQUEST IS DENIED WITHOUT PREJUDICE. RESPONDENT IS ORDERED NOT TO CHANGE THE BENEFICIARY OF THE PENSION PLANS WITHOUT FURTHER ORDER OF THE COURT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

New Case

2026 Xspouse 2026-1-CA Monthly Figures

Fixed Shares

	Husband	Wife
Number of children	0	0
Percent time with NCP	0.00%	0.00%
Filing status	MFJIN	MFJIN
Number of exemptions	4	1
Wages and salary	3000	0
Self employed income	0	0
Other taxable income	4073	0
TANF CS received	0	0
Other nontaxable income	1879	500
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Monthly Figures

2026

GUIDELINE

Nets (adjusted)

Husband	8748
Wife	500
Total	9248

Support

Addons	0
Guideln CS	0
Alameda SS	3249
Total	3249

Settings changed

Proposed

Tactic 9

CS	0
SS	3249
Total	3249
Saving	0
Releases	0

Cash Flow

Guideline Proposed

Combined net spendable	9248	9248
Percent change	0%	0%

Husband

Payment cost/benefit	-3249	-3249
Net spendable income	5499	5499
Change from guideline	0	0
% of combined spendable	59%	59%
% of saving over guideline	0%	0%
Total taxes	204	204
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	2557	2557

Wife

Payment cost/benefit	3249	3249
Net spendable income	3749	3749
Change from guideline	0	0
% of combined spendable	41%	41%
% of saving over guideline	0%	0%
Total taxes	0	0
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband

Superior Court of California
County of El Dorado